

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

September 10, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Bargar v. Synapse Group, Inc. 2023-01342702	<u>Plaintiff's Motion for Preliminary Approval of Class Action Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a claims-made class action settlement. The court has the following questions and comments: <u>As to the settlement:</u>

		1. The second addendum to the settlement agreement is not signed by defendant or defendant's counsel. 2. In the March 19, 2026 order (ROA 188), the court inquired about the provision in the first addendum to the settlement agreement stating that defendant "will fund the Settlement Fund . . . within fourteen (14) calendar days prior to the Effective Date." The court asked the parties to address the meaning of "within" in that sentence, i.e., may defendant fund the settlement fund on some date between one and 14 days before the Effective Date, but not 15 or more days before the Effective Date? The court also asked how the parties will know the Effective Date in advance, as it depends on, e.g., the date the court issues the final approval order and whether any class member appears at the final approval hearing to object? In the second supplemental brief (ROA 203), plaintiff states that the phrase "will fund the Settlement Fund . . . within fourteen (14) calendar days prior to the Effective Date" means "[d]efendant will agree to fund the Settlement Fund <i>no later than</i> 14 calendar days <i>prior</i> to the Effective Date." Second Supp. Brief (ROA 203) § II.C (at 2:22-23) (italics and bold in original). These statements are not the same, i.e., "within 14 days before the Effective Date" does not mean the same thing as "no later than 14 days before the Effective Date." If the parties have in fact agreed that defendant will fund the settlement no later than 14 days before the Effective Date, the settlement agreement should be amended to so state. The parties also have not explained how they will know the Effective Date in advance, e.g., if the court continues the hearing on the final approval motion because, for example, a class member appears at the hearing to object or the court determines supplemental information must be submitted. <u>As to the notice:</u> 3. The notice should be revised consistent with the above. 4. The Released Parties described in the first sentence of section 7 of the notice are inconsistent with the Released Parties in paragraph 30 of the first addendum and should be revised. 5. In section 17 of the notice, the second to last sentence in the first paragraph should be removed. 6. In section 21 of the notice, the second and third sentences should be removed. <u>As to the proposed order (ROA 197, 207):</u> 7. The proposed order should be revised consistent with the above.
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2	Bitonti v. Teen Road to Safety Inc. 2023-01333703	<u>Plaintiffs' Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiffs' motion for final approval of an \$220,000 class action and PAGA settlement. The court grants the motion as follows: \$5,000.00 for enhancement awards to plaintiffs (\$10,000 total); \$73,326.00 for attorneys' fees; \$13,183.95 for litigation costs; \$4,000.00 for settlement administration costs; and \$10,000.00 total PAGA penalties (\$7,500.00 to the LWDA). The final accounting hearing is scheduled for <u>April 1, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
3	Borrego Water District v. All Persons 37-2020-00005776	<u>Borrego Springs Watermaster's Motion to Amend Judgment</u>